

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CHRISTOPHER PEREZ,

Plaintiff,

against –

Index No.:

CITY OF NEW YORK, P.O. STEPHEN RASULO,
Tax No. 951118, P.O. "JOHN DOE," said name being
fictitious and presently unknown and intended to identify
the police officer from the 44th precinct who arrested plaintiff
along with P.O. STEPHEN RASULO,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff, CHRISTOPHER PEREZ (hereinafter "PEREZ"), by his attorneys, RUBERT &
GROSS, P.C., alleges the following:

1. At all times hereinafter mentioned, Plaintiff, PEREZ, was and still is a resident of the State of New York, County of Bronx.
2. Defendant, CITY OF NEW YORK (hereinafter "CITY") was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant, CITY, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
4. Defendant, P.O. STEPHEN RASULO, (hereinafter "RASULO"), was and still is an employee of defendant, CITY.
5. At all times hereinafter mentioned, defendant, "JOHN DOE", said name being fictitious and presently unknown to plaintiff, but intended to identify the police officer from the 44th precinct who arrested plaintiff along with RASULO (hereinafter "DOE"), was an employee of defendant, CITY.

6. At all times hereinafter mentioned, defendant, RASULO, was acting within the scope of his employment.
7. Defendant, RASULO, is being sued individually and in his official capacity.
8. At all times hereinafter mentioned, defendant, RASULO, was acting under color of law.
9. At all times hereinafter mentioned, defendant, DOE, was acting within the scope of his employment.
10. Defendant, DOE, is being sued individually and in his official capacity.
11. At all times hereinafter mentioned, defendant, DOE, was acting under color of law.
12. On April 8, 2014, within ninety (90) days of accrual of all actions, plaintiff filed a Notice of Claim with the Comptroller of the City of New York in the manner and mode required by law.
13. More than 60 days have elapsed since the filing of plaintiff's Notices of Claim and adjustment or payment thereof has been neglected or refused.
14. This action is brought within one (1) year and ninety (90) days from the date of accrual of all causes of action.
15. Plaintiff has complied with all conditions precedent applicable to the instant action.
16. This action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

17. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "16" above as if fully set forth herein.
18. On January 25, 2014, at or around 1380 Ogden Avenue, Bronx, New York, at approximately 4:30 p.m., entered claimant's apartment without a warrant and without

consent.

19. Defendants RASULO and DOE then proceeded to assault and batter plaintiff.
20. As a result of the aforementioned assault and battery, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
21. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

22. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “21” above as if fully set forth herein.
23. On January 25, 2014, at or around 1380 Ogden Avenue, Bronx, New York, at approximately 4:30 p.m., plaintiff was falsely accused of stealing someone’s phone by defendant, CITY, including but not limited to defendants, RASULO and DOE.
24. Defendant, CITY, through its police officers, agents, servants and/or employees, including, but not limited to defendants, RASULO and DOE, did wrongfully detain and imprison plaintiff without probable cause, without an arrest warrant and in bad faith.
25. In commencing and continuing said wrongful detention and imprisonment, defendants caused plaintiff to be wrongfully detained in violation of the laws of the State of New York and his constitutional rights.
26. At the time of the unlawful imprisonment, plaintiff had not committed any illegal act.
27. At the time of the unlawful imprisonment, plaintiff had not committed or attempted to

commit any crime.

28. At the time of the unlawful imprisonment, plaintiff had not given defendants probable cause to believe that he had committed any illegal acts.
29. At the time of plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.
30. Defendants acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of plaintiff.
31. Defendants willfully and wrongfully accused plaintiff of having committed a crime in violation of the Penal Laws of the State of New York and New York State Vehicle and Traffic Laws.
32. The aforesaid arrest was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was, therefore, a false arrest.
33. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
34. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

35. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "34" above as if fully set forth herein.

36. Subsequent to plaintiff's arrest, defendant, CITY, through its agents, servants and/or employees, including, but not limited to defendants, RASULO and DOE, did maliciously cause a criminal prosecution to be commenced against plaintiff without probable cause and in bad faith.
37. That subsequent to plaintiff's arrest, defendants RASULO and DOE, did give false testimony and/or failed to give exculpatory evidence in connection with plaintiff's criminal prosecution.
38. That in commencing and continuing said malicious prosecution, defendant, CITY, its agents, servants and/or employees, including but not limited to defendants, RASULO and DOE, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
39. That in commencing and continuing said malicious prosecution, defendants caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
40. Plaintiff had not committed or attempted to commit any illegal act(s).
41. Plaintiff had not given defendants probable cause to believe that he had committed the illegal acts of which he was accused.
42. Plaintiff had not given defendants probable cause to believe that he had committed the illegal acts of which he was accused.
43. Defendants knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.
44. Defendants knew, or should have known through the exercise of proper police

procedure and reasonable care that said investigation was false, flawed and incomplete.

45. Defendants willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
46. Defendants willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
47. All criminal charges against plaintiff were dismissed on January 30, 2014.
48. As a result of the aforementioned malicious prosecution, plaintiff suffered and continues to suffer substantial damages.
49. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
50. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

51. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "50" above as if fully set forth herein.
52. That defendant, RASULO's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

53. That defendant, RASULO, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said plaintiff.
54. Defendant, RASULO, acted with utter disregard of the consequences of his actions.
55. That defendant, DOE's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
56. That defendant, DOE, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said plaintiff.
57. Defendant, DOE, acted with utter disregard of the consequences of his actions.
58. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
59. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

60. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "59" above as if fully set forth herein.
61. Defendant, CITY, through its agents, servants and/or employees, including, but not limited to, defendants, RASULO and DOE, negligently performed their

duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

62. Defendant, RASULO and DOE, negligently performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.
63. As a result of defendants' negligence, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
64. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

65. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "64" above as if fully set forth herein.
66. That the actions of defendant, CITY, through its agents, servants and/or employees, including defendants, RASULO and DOE, heretofore described, constitute negligence in that defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, especially defendants, RASULO and DOE.
67. That the actions of defendant, CITY, through its agents, servants and/or employees, including defendants, RASULO and DOE, heretofore described, constitute negligence in that defendant, CITY, negligently supervised or failed to supervise its

agents, servants and/or employees, especially defendants, RASULO and DOE.

68. The actions of defendant, CITY, through its agents, servants and/or employees, including defendant, RASULO and DOE, heretofore described, constitute negligence in that defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, especially defendants, RASULO and DOE.
69. Defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, especially defendants, RASULO and DOE, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position.
70. Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, especially defendant, RASULO and DOE, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position in that he refused or failed to perform within the statutory and constitutional limits of his authority and misused and abused his position.
71. As a result of the negligence of defendant, CITY, and the acts of defendant, RASULO and DOE, and other agents, servants and/or employees of defendant, CITY, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
72. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

73. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “72” above as if fully set forth herein.
74. On January 25, 2014, at or around 1380 Ogden Avenue, Bronx, New York, at approximately 4:30 p.m., plaintiff was falsely accused of stealing someone’s phone by defendants, RASULO and DOE.
75. Plaintiff was assaulted and battered by said police officers from the 44th Precinct located at 2 E 169th Street, Bronx, NY 10452.
76. Plaintiff was subsequently falsely arrested by defendants, RASULO and DOE, and taken to the 44th precinct where he was detained against his will.
77. Said arrest, detention and imprisonment were without warrant, probable cause and/or justification.
78. Thereafter, plaintiff was maliciously prosecuted by defendants, RASULO and DOE.
79. That the actions of defendants, RASULO and DOE, heretofore described, constitute unlawful arrest, detention, imprisonment, assault and battery and malicious prosecution and were designed to and did cause specific and serious bodily harm, pain and suffering to plaintiff in violation of plaintiff’s Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
80. Defendant, DOE, violated plaintiff’s civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the

Constitution of the State of New York.

81. Defendant, RASULO, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
82. Defendant, DOE, violated plaintiff's civil rights by using excessive force against him in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
83. Defendant, RASULO, violated plaintiff's civil rights by using excessive force against him in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
84. Defendant, DOE, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
85. Defendant, RASULO, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
86. Defendants, RASULO and DOE, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
87. The conduct and actions of defendants, RASULO and DOE, acting in concert and under color of State law, in assaulting, battering, detaining and imprisoning and maliciously prosecuting plaintiff, were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of his acts, were done

without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

88. Defendants, RASULO and DOE, deprived plaintiff of his liberty in violation of plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
89. The actions taken by defendant, RASULO and DOE, were undertaken under color of law and would not have existed but for said defendant using his official power.
90. As a result of the above-mentioned constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
91. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

92. Plaintiff repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "91" above as if fully set forth herein.
93. That the actions of defendant, CITY, its agents, servants and/or employees heretofore described constitute unlawful detention, imprisonment, assault and battery and malicious prosecution and were designed to and did cause specific and serious bodily

harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

94. That the supervisors and policy making officers of defendant, CITY, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.
95. Defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.
96. Defendant, CITY, hired and retained in its employ certain police officers, including, but not limited to, defendants, RASULO and DOE, with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.
97. At all times material to this Complaint, defendant, CITY, acting through its police department, had in effect *de facto* policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of defendants, RASULO and DOE.
98. That these policies, practices and customs include, *inter alia*: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force, in warrantless and otherwise unconstitutional and impermissible arrests and imprisonments, particularly those who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

99. At all times material to this Complaint, defendant, CITY, had in effect policies, practices and customs of allowing, permitting and or ratifying police officers' warrantless and unlawful arrests.
100. The policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, *inter alia*, by the following:
- a. The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
 - b. The fact that cases where complaints have been lodged against police officers were inadequately investigated.
 - c. The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
 - d. The fact that, upon information and belief, only a small number of police officers have been has been fired for such misconduct since 1989.
 - e. The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.
101. That the policymakers of the Police Department and defendant, CITY, knew or should have known that defendant police officers, RASULO and DOE, and other police officers in the Department were violating people's Constitutional rights and that defendants were taking actions that were shocking the conscience or otherwise violating the substantive due process rights of the people of New York City.

102. That defendant, CITY, in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, defendant, CITY, and the New York City Police Department fail to impose any discipline upon the police officers guilty of abuse, either before or after the Court resolution.
103. That defendant, CITY, after the resolution of civil cases that result in verdicts or substantial settlements for victims of police misconduct, almost never even reopens an investigation previously conducted.
104. That in a substantial number of cases, defendant, CITY, promotes the officers guilty of misconduct to a position of greater authority.
105. Defendant, CITY, and the New York City Police Department tolerates and encourages police officers to lie to cover up wrongful conduct as evidenced by the Mollen Commission Report, July 7, 1994. The effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.
106. Defendant, CITY, failed to effectively screen, hire, train, supervise and discipline its police officers, including, but not limited to, defendant police officers, RASULO and DOE, herein, for their propensity for violence, including excessive use of force and restraint, lack of truthfulness and for their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing defendant police officers, RASULO and DOE, herein to falsely, arrest, imprison, assault and battery and/or excessively restrain plaintiff and to otherwise cause him injury and violate his federal and state constitutional rights, or to permit these action

to take place with his knowledge or consent.

107. On information and belief, defendant, RASULO and DOE, has been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that defendant police officer herein was likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by plaintiff herein.
108. Defendant, CITY, failed to put into place and otherwise maintain an adequate structure for risk containment and stress management relative to its police officers. These failures include, *inter alia*, deficiencies in structure at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.
109. As a result of the foregoing conscious policies, practices, customs or usages, defendant, CITY, has permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unconstitutional behavior.
110. Such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to

plaintiff herein.

111. As a result of the foregoing, plaintiff was caused to suffer personal injuries, false arrest, false imprisonment, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
112. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION

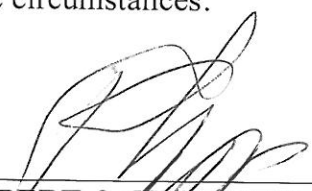
113. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "112" above as if fully set forth herein.
114. The actions of defendants heretofore described resulting from the January 25, 2014, unlawful arrest, detention, imprisonment, assault and battery, use of excessive force and malicious prosecution deprived plaintiff of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution and the Civil Rights Acts, 42 U.S.C. §1983.
115. That the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of defendant, CITY's agents, servants and/or employees, and those involving the detention, unlawful imprisonment, assault and battery of individuals, including plaintiff.
116. That in the event that plaintiff is successful in the prosecution of the aforesaid claim(s), plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988

and entitled to the recovery of attorneys' fees from the defendants.

117. By reason of the foregoing, the defendants are liable to plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff, CHRISTOPHER PEREZ, respectfully demands judgment against defendants, THE CITY OF NEW YORK, P.O. STEPHEN RASULO and P.O. JOHN DOE, and requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
February 26, 2015



RUBERT & GROSS, P.C.
150 Broadway, Suite 712
New York, New York 10038
(212) 608-3103

ATTORNEY VERIFICATION

RICHARD GROSS, an attorney admitted to practice in the Courts of New York and before the Court, states as follows:

That I am an attorney at the firm RUBERT & GROSS P.C., attorneys of record for plaintiff in the within action; I have read the foregoing SUMMONS & COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

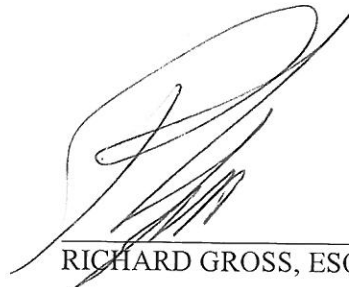
That the reason this verification is being made by me and not by the plaintiff is because the plaintiff does not reside in the county within which we maintain our office.

The ground of my knowledge as to all matters not stated upon my own information and belief, are as follows:

Interview with the plaintiff and his family and review of the documents contained within the file.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
February 26, 2015



RICHARD GROSS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
AALIYAH JADA WALKER, an infant by her mother
and natural guardian, SHANTE GIBBS and
SHANTE GIBBS, Individually,

Plaintiffs,

Index No.:

-against-

JAMAICA HOSPITAL MEDICAL CENTER,
AJEY JAIN, M.D., LISA M. ALKENINO, R.N.,
CHINNAMMA ULAHANNAN, R.N.,
B. KURIYAN, R.N., LORNA LUMICAO, M.D.,
YANKICK CLERMONT, R.N., ANNABELLE MEDINA,
R.N., CELINE SUBBAROA, R.N., ANNE SEBU THOMAS,
R.N., GENERA MEDINA, M.D., JAVIER DEPAZ, M.D.,
ESMERELDA ACELO, R.N. and MARY AMBOOKEN, R.N.,

Defendants.

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SUMMONS WITH NOTICE AND
VERIFIED COMPLAINT

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